

CV-26-003882 PADILLA, JOHN PAUL vs DOCTORS MEDICAL CENTER OF MODESTO INC – Defendant’s Petition to Compel Arbitration – CONTINUED, pending hearing on the COURT’S MOTION RE CONSOLIDATION (Code Civ. Proc. § 1048) on October 29, 2026 at 8:30 a.m. in Department 22.

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: The Court notes that the parties are involved in a related case, CV26-6441, which is currently pending in Department 23 with a similar petition to compel arbitration set for hearing in January 2027. Code of Civ. Proc. § 1048(a) provides that when actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay. Under the circumstances, the Court believes that consolidation of the related cases herein may be in order, either (1) for all purposes or (2) at a minimum, for hearing and determination of the issues presented by the arbitration petitions. Therefore, the Court sets a hearing on its own Motion for Consolidation, as above. The parties are directed to meet and confer as to the potential scope of consolidation and shall submit briefing with regard to their respective positions no later than October 15, 2026. The hearing on the instant motion is CONTINUED, to be rescheduled after the consolidation motion has been resolved.

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